



Bill Number: H.B. 2621

Angius Floor Amendment

Reference to: EDUCATION Committee amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Determines that a pupil who is placed by a state placing agency or a court in a residential placement as outlined and is either parentally placed in a private school or attends a homeschool retains:
 - a) the rights established by the federal Individuals with Disabilities Education Act (IDEA), including the rights to be identified, located and evaluated for IDEA Part B eligibility; and
 - b) if the pupil is parentally placed in a nonprofit private school or attends a homeschool, the right to equitable services under proportionate share funding.
2. Specifies that a pupil who resides in an unorganized territory and is parentally placed in a private school or attends a homeschool retains the right to equitable services under proportionate share funding only if the pupil is parentally placed in a nonprofit private school or attends a homeschool.
3. Outlines procedures for determining the school district that is responsible for providing activities and services relating to IDEA Part B for pupils who are placed by a state placing agency or court in a residential placement as outlined and is parentally placed in a private school or attends a homeschool, based on whether the private school is nonprofit and the residential placement is located within the boundaries of a school district.
4. Requires, on request from a pupil or pupil's parent, a county school superintendent to identify the adjoining school district that is geographically closest to the pupil's residence or residential placement.
5. Stipulates that, if a pupil who resides in unorganized territory does not have a school district of attendance and seeks to enroll in a public school, the pupil's parent may, rather than must:
 - a) enroll the pupil in a school pursuant to open enrollment procedures; or
 - b) request the pupil's enrollment in the adjoining school district geographically closest to the pupil's residence.
6. Specifies that, if a pupil's parent requests the pupil's enrollment in the adjoining school district that is geographically closest to the pupil's residence as prescribed, the school district must enroll the pupil.
7. Redefines *nonresident pupil*, for the purposes of open enrollment, as a pupil who is not a resident pupil, resides in Arizona and is enrolled or seeking enrollment in a school district other than the school district in which the pupil resides.

Amendment explanation prepared by Mason Holler

04/15/2026

8. Redefines *resident school*, for the purposes of open enrollment, to mean:
 - a) for a pupil who resides in the school district, a school that is within the designated attendance area in which the pupil resides;
 - b) for a pupil who resides in an unorganized territory, the school that is geographically closest to the pupil's residence and that serves the pupil's grade level; or
 - c) for a pupil who is placed by a state placing agency or court in a residential placement, a school within the designated attendance area in which the residential placement is located.
9. Makes technical and conforming changes.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2621
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.

~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 7, article 4, Arizona Revised
3 Statutes, is amended by adding section 15-768, to read:

4 15-768. Pupils residing in unorganized territory; pupils
5 placed by a court or state placing agency;
6 definitions

7 A. THE PARENT OF A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY
8 MAY REQUEST A CHILD FIND SCREENING, A SPECIAL EDUCATION EVALUATION OR
9 ENROLLMENT OF THE PUPIL IN THE ADJOINING SCHOOL DISTRICT THAT IS
10 GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE. A SCHOOL DISTRICT THAT
11 RECEIVES A REQUEST PURSUANT TO THIS SUBSECTION IS RESPONSIBLE FOR ALL
12 CHILD FIND ACTIVITIES FOR THAT PUPIL. IF A PARENT OF A PUPIL WHO IS A
13 CHILD WITH A DISABILITY AS DEFINED IN SECTION 15-761 REQUESTS ENROLLMENT
14 OF THE PUPIL IN A SCHOOL DISTRICT PURSUANT TO THIS SUBSECTION, THE SCHOOL
15 DISTRICT IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION
16 TO THE PUPIL.

1 B. EACH PROGRAM THAT PROVIDES EARLY INTERVENTION SERVICES PURSUANT
2 TO PART C OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20 UNITED
3 STATES CODE SECTIONS 1401 THROUGH 1485) TO PUPILS WHO RESIDE IN
4 UNORGANIZED TERRITORIES SHALL INITIATE THE PROCESS FOR TRANSITIONING THE
5 PUPILS FROM PART C TO PART B OF THE INDIVIDUALS WITH DISABILITIES
6 EDUCATION ACT BY NOTIFYING THE DEPARTMENT OF EDUCATION AND REFERRING THE
7 PUPIL TO THE ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST TO
8 THE PUPIL'S RESIDENCE FOR A ~~{{PART B}}~~ {{SPECIAL EDUCATION}} EVALUATION
9 AND TRANSITION AT LEAST NINETY DAYS BEFORE THE PUPIL'S THIRD BIRTHDAY. IF
10 A PROGRAM DETERMINES THAT A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY
11 IS ELIGIBLE FOR EARLY INTERVENTION SERVICES PURSUANT TO PART C OF THE
12 INDIVIDUALS WITH DISABILITIES EDUCATION ACT MORE THAN FORTY-FIVE DAYS BUT
13 FEWER THAN NINETY DAYS BEFORE THE PUPIL'S THIRD BIRTHDAY, THE PROGRAM
14 SHALL INITIATE THE PROCESS FOR TRANSITIONING THE PUPIL FROM PART C TO PART
15 B OF THE INDIVIDUALS WITH DISABILITIES ACT PURSUANT TO THIS SUBSECTION AS
16 SOON AS POSSIBLE, CONSISTENT WITH FEDERAL LAW.

17 C. IF THE ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST
18 TO THE RESIDENCE OF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION
19 CONDUCTS A SPECIAL EDUCATION EVALUATION OF THE PUPIL AND DETERMINES
20 THAT THE PUPIL IS ELIGIBLE FOR SPECIAL EDUCATION AND RELATED SERVICES
21 UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT, THE
22 PUPIL'S PARENTS MAY REQUEST ENROLLMENT OF THE PUPIL IN THE SCHOOL DISTRICT
23 AT ANY TIME AND THE SCHOOL DISTRICT SHALL INFORM THE PUPIL'S PARENT THAT
24 THE PUPIL'S PARENT MAY REQUEST ENROLLMENT OF THE PUPIL. ON RECEIPT OF A
25 REQUEST FOR ENROLLMENT PURSUANT TO THIS SUBSECTION, A SCHOOL DISTRICT
26 SHALL PREPARE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FOR THE
27 PUPIL AS PRESCRIBED BY SECTION 15-825 AND OFFER A FREE APPROPRIATE PUBLIC
28 EDUCATION TO THE PUPIL.

29 D. IF A PUPIL RESIDES IN AN UNORGANIZED TERRITORY AND EITHER IS
30 PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE
31 FOLLOWING APPLY:

32 1. THE PUPIL RETAINS ~~{{THE FOLLOWING RIGHTS:~~
33 ~~(a)}}~~ THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,
34 INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR
35 ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION
36 ACT.

37 ~~{{(b)}}~~ {{2. IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT
38 PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE PUPIL RETAINS}} THE RIGHT TO
39 EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING PURSUANT TO {{34 CODE
40 OF FEDERAL REGULATIONS SECTIONS 300.130 THROUGH 300.144}} {{20 UNITED
41 STATES CODE SECTION 1412}}.

42 ~~{{2.}}~~ {{3.}} THE SCHOOL DISTRICT THAT IS RESPONSIBLE FOR ~~{{ALL~~
43 ~~CHILD FIND}}~~ {{CONDUCTING THE}} ACTIVITIES {{DESCRIBED IN PARAGRAPH 1 OF
44 THIS SUBSECTION}} AND FOR ~~{{CONDUCTING A SPECIAL EDUCATION EVALUATION}}~~
45 {{PROVIDING THE SERVICES DESCRIBED IN PARAGRAPH 2 OF THIS SUBSECTION}} FOR
46 THE PUPIL IS:

47 (a) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
48 THAT IS LOCATED WITHIN THE BOUNDARIES OF A SCHOOL DISTRICT, THE SCHOOL
49 DISTRICT IN WHICH THE PRIVATE SCHOOL IS LOCATED.

1 (b) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
2 THAT IS LOCATED IN AN UNORGANIZED TERRITORY, THE ADJOINING SCHOOL DISTRICT
3 THAT IS GEOGRAPHICALLY CLOSEST TO THE PRIVATE SCHOOL.

4 (c) IF THE PUPIL ATTENDS A HOMESCHOOL OR IS PARENTALLY PLACED IN A
5 PRIVATE SCHOOL THAT IS NOT A NONPROFIT, THE ADJOINING SCHOOL DISTRICT THAT
6 IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE.

7 ~~{{3. IF THE PUPIL HAS BEEN FOUND TO BE ELIGIBLE FOR SPECIAL~~
8 ~~EDUCATION OR RELATED SERVICES UNDER PART B OF THE INDIVIDUALS WITH~~
9 ~~DISABILITIES EDUCATION ACT, THE PUPIL'S PARENTS MAY REQUEST FROM THE~~
10 ~~SCHOOL DISTRICT THAT IS RESPONSIBLE FOR THE PUPIL PURSUANT TO PARAGRAPH 2~~
11 ~~OF THIS SUBSECTION EITHER OR BOTH OF THE FOLLOWING:~~

12 ~~(a) AN EVALUATION PURSUANT TO 20 UNITED STATES CODE SECTION~~
13 ~~1412(a)(3)(A).~~

14 ~~(b) A MEETING TO DISCUSS EQUITABLE SERVICES AND THE DEVELOPMENT OF~~
15 ~~A SERVICE PLAN PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS~~
16 ~~300.130 THROUGH 300.144.}}~~

17 ~~{{E. IF A PUPIL IS PLACED BY A STATE PLACING AGENCY OR A COURT OF~~
18 ~~COMPETENT JURISDICTION IN A RESIDENTIAL PLACEMENT DESCRIBED IN SECTION~~
19 ~~15-823, SUBSECTION C AND EITHER IS PARENTALLY PLACED IN A PRIVATE SCHOOL~~
20 ~~OR ATTENDS A HOMESCHOOL, THE FOLLOWING APPLY:~~

21 1. THE PUPIL RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES
22 CODE SECTION 1412, INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND
23 EVALUATED FOR ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH
24 DISABILITIES EDUCATION ACT.

25 2. IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
26 OR ATTENDS A HOMESCHOOL, THE PUPIL RETAINS THE RIGHT TO EQUITABLE
27 SERVICES UNDER PROPORTIONATE SHARE FUNDING PURSUANT TO 20 UNITED STATES
28 CODE SECTION 1412.

29 3. THE SCHOOL DISTRICT THAT IS RESPONSIBLE FOR CONDUCTING THE
30 ACTIVITIES DESCRIBED IN PARAGRAPH 1 OF THIS SUBSECTION AND FOR PROVIDING
31 THE SERVICES DESCRIBED IN PARAGRAPH 2 OF THIS SUBSECTION FOR THE PUPIL
32 IS:

33 (a) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
34 THAT IS LOCATED WITHIN THE BOUNDARIES OF A SCHOOL DISTRICT, THE SCHOOL
35 DISTRICT IN WHICH THE PRIVATE SCHOOL IS LOCATED.

36 (b) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL
37 THAT IS LOCATED IN AN UNORGANIZED TERRITORY, THE ADJOINING SCHOOL
38 DISTRICT THAT IS GEOGRAPHICALLY CLOSEST TO THE PRIVATE SCHOOL.

39 (c) IF THE PUPIL ATTENDS A HOMESCHOOL OR IS PARENTALLY PLACED IN A
40 PRIVATE SCHOOL THAT IS NOT A NONPROFIT AND THE RESIDENTIAL PLACEMENT IS
41 LOCATED WITHIN THE BOUNDARIES OF A SCHOOL DISTRICT, THE SCHOOL DISTRICT
42 IN WHICH THE RESIDENTIAL PLACEMENT IS LOCATED.

43 (d) IF THE PUPIL ATTENDS A HOMESCHOOL OR IS PARENTALLY PLACED IN A
44 PRIVATE SCHOOL THAT IS NOT A NONPROFIT AND THE RESIDENTIAL PLACEMENT IS
45 LOCATED IN AN UNORGANIZED TERRITORY, THE ADJOINING SCHOOL DISTRICT THAT
46 IS GEOGRAPHICALLY CLOSEST TO THE RESIDENTIAL PLACEMENT.

47 F. ON REQUEST FROM A PUPIL OR A PUPIL'S PARENT, A COUNTY SCHOOL
48 SUPERINTENDENT SHALL IDENTIFY THE ADJOINING SCHOOL DISTRICT THAT IS

1 GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE OR RESIDENTIAL
2 PLACEMENT.}}

3 ~~{{F.}}~~ {{G.}} FOR THE PURPOSES OF THIS SECTION:

4 1. "CHILD FIND ACTIVITIES" MEANS STATE OBLIGATIONS PURSUANT TO 20
5 UNITED STATES CODE SECTION 1412(a)(3), THE FEDERAL REGULATIONS ISSUED
6 PURSUANT TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT AND THE RULES
7 ADOPTED BY THE STATE BOARD OF EDUCATION RELATING TO THE IDENTIFICATION
8 AND REFERRAL OF CHILDREN WITH DISABILITIES BY PUBLIC SCHOOLS.

9 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
10 PRESCRIBED IN 20 UNITED STATES CODE SECTION 1401.

11 3. "HOMESCHOOL" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-802.

12 4. "UNORGANIZED TERRITORY" HAS THE SAME MEANING PRESCRIBED IN
13 SECTION 15-825.

14 5. "RELATED SERVICES" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED
15 STATES CODE SECTION 1401.

16 6. "SPECIAL EDUCATION" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED
17 STATES CODE SECTION 1401.

18 7. "SPECIAL EDUCATION EVALUATION" MEANS AN EVALUATION CONDUCTED
19 PURSUANT TO SECTION 15-766 AND RULES ADOPTED BY THE STATE BOARD OF
20 EDUCATION.

21 {{8. "STATE PLACING AGENCY" HAS THE SAME MEANING PRESCRIBED IN
22 SECTION 15-1181.}}

23 <<Sec. 2. Section 15-797, Arizona Revised Statutes, is amended to
24 read:

25 15-797. Financial provisions for students in alternative
26 education programs and alternative schools

27 A. School districts may count students for daily attendance as
28 provided in section 15-901 who are not actually and physically in
29 attendance in a recognized common or high school but who are enrolled in
30 and actually and physically in attendance in an alternative education
31 program or alternative school that is provided by any public body or
32 private person and that meets the standards that the state board of
33 education and the governing board prescribe for the course of study given
34 in the common and high schools.

35 B. The governing board of a school district shall prescribe
36 procedures for verifying the attendance of students enrolled in an
37 alternative education program or alternative school that is provided by
38 any public body or private person.

39 C. The governing board may pay for the cost of educating students
40 as provided in this article not to exceed the cost per student count as
41 provided in section 15-824, subsection ~~[G]~~[E].

42 D. School districts operating alternative education programs or
43 alternative schools pursuant to this section and charter schools
44 operating on approved alternative calendars pursuant to section 15-183
45 shall comply with the annual hours of instruction requirement pursuant to
46 section 15-901.>>

1 Sec. 3. Section 15-816, Arizona Revised Statutes, is amended to
2 read:

3 15-816. Definitions

4 In this article, unless the context otherwise requires:

5 1. "Nonresident pupil" means a pupil who {{MEETS ALL OF THE
6 FOLLOWING:

7 (a) IS NOT A RESIDENT PUPIL.

8 (b)}} Resides in this state{{.}} {{and who}}

9 {{(c)}} Is enrolled in or is seeking enrollment in a school
10 district other than the school district in which the pupil resides.

11 2. "Open enrollment" means a policy that is adopted and implemented
12 by a school district governing board to allow resident transfer pupils to
13 enroll in any school within the school district, to allow resident pupils
14 to enroll in any school located within other school districts in this
15 state and to allow nonresident pupils to enroll in any school within the
16 district pursuant to section 15-816.01.

17 3. "Resident pupil" means a pupil WHO MEETS ANY OF THE FOLLOWING:

18 (a) Whose residence is within the attendance area of a school.

19 (b) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
20 15-825 AND WHOSE RESIDENCE ADJOINS A BOUNDARY OF THE SCHOOL DISTRICT.

21 (c) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
22 15-825 AND WHOSE RESIDENCE IS LOCATED ON TRIBAL LAND.

23 (d) WHO IS PLACED AS DESCRIBED IN SECTION ~~[15-825, SUBSECTION B]~~
24 [15-823, SUBSECTION C].

25 4. "Resident school" means{{:}}

26 (a) FOR A PUPIL WHO RESIDES IN THE SCHOOL DISTRICT,}} a school that
27 is within the designated attendance area in which {{a}} {{THE}} pupil
28 resides.

29 {{(b) FOR A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY, THE
30 SCHOOL THAT IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE AND THAT
31 SERVES THE PUPIL'S GRADE LEVEL.

32 (c) FOR A PUPIL WHO IS PLACED AS DESCRIBED IN SECTION 15-823,
33 SUBSECTION C, A SCHOOL WITHIN THE DESIGNATED ATTENDANCE AREA IN WHICH THE
34 RESIDENTIAL PLACEMENT IS LOCATED.}}

35 5. "Resident transfer pupil" means a resident pupil who is enrolled
36 in or seeking enrollment in a school that is within the school
37 district but outside the attendance area of the pupil's residence.

38 <<Sec. 4. Section 15-823, Arizona Revised Statutes, is amended to
39 read:

40 15-823. Admission; residents of other school districts;
41 nonresidents of this state; children placed by a
42 court or state placing agency; tuition; definition

43 A. Except as provided in subsections B, ~~[C,]~~ D, E, F, G~~[,]~~ ~~[and]~~ H
44 [AND I] of this section, children of nonresidents of this state may be
45 admitted on payment of a reasonable tuition fixed by the governing board.

46 B. The governing board shall admit children of nonresident teaching
47 and research faculty of community college districts and state universities
48 and children of nonresident graduate or undergraduate students of
49 community college districts and state universities whose parent's presence

1 at the district or university is of international, national, state or
2 local benefit without payment of tuition.

3 [C. THE GOVERNING BOARD SHALL ADMIT CHILDREN WHO ARE PLACED BY A
4 STATE PLACING AGENCY OR A COURT OF COMPETENT JURISDICTION IF THE CHILD'S
5 PLACEMENT IS LOCATED WITHIN THE BOUNDARIES OF THE SCHOOL DISTRICT AND IS
6 ANY OF THE FOLLOWING:

7 1. A STATE REHABILITATION OR CORRECTIONAL INSTITUTION.

8 2. A FOSTER HOME OR CHILD CARE AGENCY OR INSTITUTION THAT IS
9 LICENSED AND SUPERVISED BY THE DEPARTMENT OF CHILD SAFETY OR THE
10 DEPARTMENT OF HEALTH SERVICES.

11 3. A RESIDENTIAL FACILITY THAT IS OPERATED OR SUPPORTED BY THE
12 DEPARTMENT OF ECONOMIC SECURITY OR THE DEPARTMENT OF HEALTH SERVICES.

13 4. UNDER THE SUPERVISION OF THE DEPARTMENT OF JUVENILE CORRECTIONS,
14 A RESIDENCE PURSUANT TO THE INTERSTATE COMPACT ON JUVENILES.]

15 [C.] [D.] The governing board shall admit children who are
16 residents of the United States but who are nonresidents of this state
17 without payment of tuition if evidence indicates that the child's
18 physical, mental, moral or emotional health is best served by placement
19 with a grandparent, brother, sister, stepbrother, stepsister, aunt or
20 uncle who is a resident within the school district, unless the governing
21 board determines that the placement is solely for the purpose of obtaining
22 an education in this state without payment of tuition.

23 [D.] [E.] The governing board may admit nonresident foreign
24 students who are in exchange programs without payment of tuition or as it
25 may otherwise prescribe.

26 [E.] [F.] Notwithstanding subsection [D] [E] of this section,
27 [beginning in the 2016-2017 school year] the governing board may admit the
28 same number of nonresident foreign students who are in exchange programs
29 and who are recipients of a J-1 visa pursuant to federal law, that is
30 equal to the number of resident students enrolled in that local education
31 agency who are currently participating in a foreign exchange program, as
32 determined by the department, without the payment of tuition.

33 [F.] [G.] The governing board may admit children who are residents
34 of the United States without payment of tuition if evidence indicates that
35 because the parents are homeless or the child is abandoned, as defined in
36 section 8-201, the child's physical, mental, moral or emotional health is
37 best served by placement with a person who does not have legal custody of
38 the child and who is a resident within the school district, unless the
39 governing board determines that the placement is solely for the purpose of
40 obtaining an education in this state without payment of tuition.

41 [G.] [H.] The governing board may admit children who are residents
42 of the United States, but who are nonresidents of this state, without
43 payment of tuition if all of the following conditions exist:

44 1. The child is a member of a federally recognized Indian tribe.

45 2. The child resides on Indian lands that are under the
46 jurisdiction of the tribe of which the child is a member.

47 3. The area in the boundaries of the reservation where the child
48 resides is located both in this state and in another state of the United
49 States.

1 4. The governing board enters into an intergovernmental agreement
2 with the governing board of the school district in another state in which
3 the nonresident child resides. The intergovernmental agreement shall
4 specify the number of nonresident children admitted in this state and the
5 number of resident children that are admitted by the governing board in
6 another state.

7 ~~[H.]~~ ~~[I.]~~ The governing board may admit children who are residents
8 of the United States, but who are nonresidents of this state, without
9 payment of tuition if all of the following conditions exist:

10 1. The child is enrolled in a year-round residential boarding
11 academy located in this state specializing in intensive instruction and
12 skill development in sports, music or acting.

13 2. The child's parents have executed a current notarized
14 guardianship agreement covering the child while enrolled at the academy,
15 which is a condition of enrollment at the academy and authorizes academy
16 representatives to act on behalf of the child's parent or legal guardian
17 in making all decisions on a daily basis as to the child's activities and
18 needs for medical, educational and other personal issues.

19 ~~[I.]~~ ~~[J.]~~ The governing board shall charge reasonable tuition for
20 the number of nonresident pupils who reside in another state and who are
21 admitted by a governing board in this state pursuant to subsection ~~[G]~~ ~~[H]~~
22 of this section that exceeds the number of resident pupils from this state
23 who are admitted into a school district by the other state.

24 ~~[J.]~~ ~~[K.]~~ The governing board of a school district shall pay
25 reasonable tuition for the number of resident pupils who reside in that
26 school district and who are admitted by a school district in another state
27 pursuant to subsection ~~[G]~~ ~~[H]~~ of this section that exceeds the number of
28 nonresident pupils from that other state who are admitted by the governing
29 board into that school district in this state.

30 ~~[K.]~~ ~~[L.]~~ Children admitted under this section shall be counted or
31 not counted as resident pupils as prescribed in section 15-824,
32 subsection D.

33 ~~[L.]~~ ~~[M.]~~ Except as provided in subsections ~~[F]~~ ~~[F]~~, ~~[H]~~ ~~[I]~~ and
34 ~~[K]~~ ~~[L]~~ of this section, a school district or a charter school shall not
35 include pupils who are not residents of this state in the district's or
36 charter school's student count and shall not obtain state funding for
37 those pupils.

38 [N. ON OR BEFORE JUNE 30, 2027, EACH STATE PLACING AGENCY SHALL
39 DEVELOP A FORM FOR ATTESTING THAT A CHILD IS PLACED BY THE STATE PLACING
40 AGENCY IN ONE OF THE {{RESIDENTIAL}} PLACEMENTS DESCRIBED IN SUBSECTION C
41 OF THIS SECTION. BEGINNING IN FISCAL YEAR 2027-2028, ON REQUEST FROM A
42 STUDENT'S PARENT, A SCHOOL DISTRICT OFFICIAL OR A COUNTY SCHOOL
43 SUPERINTENDENT, A STATE PLACING AGENCY SHALL PROVIDE AN ATTESTATION FORM
44 FOR A CHILD WHO IS PLACED BY THE STATE PLACING AGENCY AND WHO IS
45 IDENTIFIED IN THE REQUEST. A SCHOOL DISTRICT SHALL ACCEPT AN ATTESTATION
46 FORM THAT IS PROVIDED PURSUANT TO THIS SUBSECTION AS EVIDENCE OF THE
47 CHILD'S ELIGIBILITY FOR ENROLLMENT PURSUANT TO SUBSECTION C OF THIS
48 SECTION. IF A STUDENT'S PARENT, COUNTY SCHOOL SUPERINTENDENT OR STATE
49 PLACING AGENCY DOES NOT PROVIDE TO A SCHOOL DISTRICT AN ATTESTATION FORM

1 ON ENROLLMENT OF A CHILD DESCRIBED IN SUBSECTION C OF THIS SECTION, THE
2 SCHOOL DISTRICT MAY REQUEST AN ATTESTATION FORM FROM THE STATE PLACING
3 AGENCY.

4 O. ON REQUEST BY THE PARENT OF A CHILD DESCRIBED IN SUBSECTION C OF
5 THIS SECTION, A SCHOOL DISTRICT SHALL ALLOW THE CHILD TO REMAIN ENROLLED
6 AS A RESIDENT PUPIL IN THE SAME SCHOOL REGARDLESS OF ANY SUBSEQUENT CHANGE
7 IN THE CHILD'S RESIDENCE IF BOTH OF THE FOLLOWING CONDITIONS ARE MET:

8 1. THE CHILD IS IN ONE OF THE {{RESIDENTIAL}} PLACEMENTS DESCRIBED
9 IN SUBSECTION C OF THIS SECTION.

10 2. THE {{RESIDENTIAL}} PLACEMENT IS LOCATED EITHER:

11 (a) WITHIN THE BOUNDARIES OF THE SCHOOL DISTRICT IN WHICH THE CHILD
12 SEEKS TO REMAIN ENROLLED.

13 (b) WITHIN THE BOUNDARIES OF AN ADJOINING SCHOOL DISTRICT TO THE
14 SCHOOL DISTRICT IN WHICH THE CHILD SEEKS TO REMAIN ENROLLED.

15 (c) IN AN UNORGANIZED TERRITORY AND THE ADJOINING SCHOOL DISTRICT
16 THAT IS GEOGRAPHICALLY CLOSEST TO THE CHILD'S {{RESIDENTIAL}} PLACEMENT IS
17 AN ADJOINING SCHOOL DISTRICT TO THE SCHOOL DISTRICT IN WHICH THE CHILD
18 SEEKS TO REMAIN ENROLLED.

19 P. FOR THE PURPOSES OF THIS SECTION, "STATE PLACING AGENCY" HAS THE
20 SAME MEANING PRESCRIBED IN SECTION 15-1181.]>>

21 Sec. 5. Section 15-823.01, Arizona Revised Statutes, is amended to
22 read:

23 15-823.01. Admission of nonresident children; services or
24 accommodations for children with disabilities;
25 active military duty; posting requirement;
26 definitions

27 A. Notwithstanding any other law, a ~~pupit~~ CHILD complies with the
28 residency requirements for school attendance in a local education agency
29 ~~OR FOR SERVICES OR ACCOMMODATIONS~~ if the parent of the ~~pupit~~ CHILD is
30 transferred to or is pending transfer to a military installation within
31 this state while on active military duty pursuant to an official military
32 order.

33 B. A local education agency shall accept an application for
34 enrollment and course registration by ~~electronic~~ ANY means, ~~INCLUDING BY~~
35 ~~ELECTRONIC MEANS OR A REMOTE APPLICATION~~, for a pupil who meets the
36 requirements prescribed in subsection A of this section, including
37 enrollment in a specific school or program within the local education
38 agency.

39 C. The parent of a ~~pupit~~ CHILD who meets the requirement prescribed
40 in subsection A of this section shall provide proof of ~~residence~~ RESIDENCY
41 to the local education agency within ten days after the arrival date
42 provided on official documentation. The parent may use the address of any
43 of the following as proof of ~~residence~~ RESIDENCY for the purposes of this
44 subsection:

45 1. A temporary on-base billeting facility.

46 2. TEMPORARY OFF-BASE LODGING.

47 ~~2-~~ 3. A purchased or leased home or apartment.

1 ~~3.~~ 4. Any federal government housing or off-base military housing,
2 including off-base military housing that may be provided through a
3 public-private venture.

4 5. ANY OTHER TEMPORARY HOUSING.

5 D. IF A SCHOOL DISTRICT IS NOTIFIED THAT A CHILD WHO MEETS THE
6 REQUIREMENT PRESCRIBED IN SUBSECTION A OF THIS SECTION IS RECEIVING OR
7 MIGHT BE ELIGIBLE TO RECEIVE SERVICES OR ACCOMMODATIONS, THE SCHOOL
8 DISTRICT SHALL:

9 1. PROMPTLY COORDINATE WITH THE CHILD'S PARENTS AND THE CHILD'S
10 PREVIOUS SCHOOL, IF ANY, PURSUANT TO SECTION 15-1911 TO ENSURE THE TIMELY
11 EXCHANGE OF RECORDS AND TO REDUCE ANY DELAYS IN THE CHILD RECEIVING
12 COMPARABLE SERVICES OR ACCOMMODATIONS THROUGH THE SCHOOL DISTRICT OR
13 DELAYS IN THE IMPLEMENTATION OF AN INDIVIDUALIZED FAMILY SERVICE PLAN,
14 INDIVIDUALIZED EDUCATION PROGRAM OR SECTION 504 PLAN AS DEFINED IN SECTION
15 15-731.

16 2. ACCEPT UNOFFICIAL RECORDS THAT ARE PROVIDED BY THE CHILD'S
17 PARENT, PENDING VALIDATION BY THE OFFICIAL RECORDS, PURSUANT TO SECTION
18 15-1911, ARTICLE IV, SUBSECTION A.

19 3. ON ENROLLMENT OF THE CHILD PURSUANT TO SUBSECTION B OF THIS
20 SECTION:

21 (a) PROVIDE THE CHILD WITH SERVICES OR ACCOMMODATIONS THAT ARE
22 COMPARABLE TO THE SERVICES OR ACCOMMODATIONS THAT ARE DESCRIBED IN THE
23 CHILD'S PREVIOUSLY APPROVED INDIVIDUALIZED EDUCATION PROGRAM OR SECTION
24 504 PLAN AS DEFINED IN SECTION 15-731, IN CONSULTATION WITH THE CHILD'S
25 PARENTS, UNTIL THE SCHOOL DISTRICT CONDUCTS AN ASSESSMENT OR DEVELOPS A
26 NEW INDIVIDUALIZED EDUCATION PROGRAM, IF APPROPRIATE.

27 (b) EITHER ADOPT AND IMPLEMENT THE CHILD'S PREVIOUSLY APPROVED
28 INDIVIDUALIZED EDUCATION PROGRAM OR DEVELOP, ADOPT AND IMPLEMENT A NEW
29 INDIVIDUALIZED EDUCATION PROGRAM FOR THE CHILD NOT LATER THAN THIRTY
30 CALENDAR DAYS AFTER THE CHILD ENROLLS IN THE SCHOOL DISTRICT.

31 E. THE DEPARTMENT OF EDUCATION SHALL POST INFORMATION ON THE
32 REQUIREMENTS OF THIS SECTION, INCLUDING REQUIREMENTS RELATING TO
33 ELIGIBILITY AND REQUIRED DOCUMENTATION, ON THE DEPARTMENT'S WEBSITE.

34 ~~D.~~ F. For the purposes of this section:

35 1. "Active military duty" means full-time military duty status in
36 the active uniformed service of the United States, including members of
37 the national guard and the state military reserve on active duty orders.

38 2. "Military installation" means a base, camp, post, station, yard,
39 center, homeport facility for any ship or other installation under the
40 jurisdiction of the United States department of defense or the United
41 States coast guard.

42 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

43 4. "SERVICES OR ACCOMMODATIONS" MEANS ANY SERVICES OR
44 ACCOMMODATIONS THAT ARE PROVIDED THROUGH A LOCAL EDUCATION AGENCY PURSUANT
45 TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (P.L. 91-260; 84 STAT.
46 175; 20 UNITED STATES CODE SECTIONS 1400 THROUGH 1482), SECTION 504 OF THE
47 REHABILITATION ACT OF 1973 (P.L. 93-112; 87 STAT. 355; 29 UNITED STATES
48 CODE SECTION 794) OR TITLE II OF THE AMERICANS WITH DISABILITIES ACT OF

1 1990 (P.L. 101-336; 104 STAT. 327; 42 UNITED STATES CODE SECTIONS 12131
2 THROUGH 12165).

3 Sec. 6. Section 15-824, Arizona Revised Statutes, is amended to
4 read:

5 15-824. Admission of pupils of other school districts;
6 homeless children; tuition charges; definitions

7 A. The governing board of a school district shall admit pupils from
8 another school district or area as follows:

9 1. On the presentation of a certificate of educational convenience
10 issued by the county school superintendent pursuant to section 15-825.

11 2. For three hundred fifty or fewer pupils, to a high school
12 without the presentation of a certificate of educational convenience, if
13 the pupil is a resident of a common school district within this state that
14 is not within a high school district and that does not offer instruction
15 in the pupil's grade. The three hundred fifty or fewer pupil limitation
16 prescribed in this paragraph does not apply to a small isolated school
17 district as defined in section 15-901. The school membership of such
18 pupils is deemed, for the purposes of determining student count and
19 providing a free and appropriate public education pursuant to the
20 individuals with disabilities education act (20 United States Code
21 chapter 33) and for apportionment of state aid, to be enrollment in the
22 school district of the pupil's attendance.

23 3. To a high school without the presentation of a certificate of
24 educational convenience if the pupil is a resident of a transporting
25 school district that does not offer instruction in the pupil's grade.
26 Tuition shall be charged as prescribed in subsection E of this section for
27 each pupil who is admitted pursuant to this paragraph. For the purposes of
28 determining student count and for apportionment of state aid, the school
29 membership of these pupils is deemed to be enrollment in the school
30 district of the pupil's residence.

31 B. The residence of the person having legal custody of the pupil is
32 considered the residence of the pupil, except as provided in subsection C
33 of this section and in section ~~[15-825, subsection SUBSECTIONS B AND C]~~
34 [15-823, SUBSECTION C].

35 C. The current residence of a homeless pupil who does not reside
36 with the person having legal custody of the pupil is considered to be the
37 residence of the homeless pupil if the person having legal custody of the
38 pupil is a resident of the United States. For the purposes of this
39 subsection, "homeless pupil" means a pupil who has a primary residence
40 that is:

41 1. A supervised publicly or privately operated shelter designed to
42 provide temporary living accommodations.

43 2. An institution that provides a temporary residence for
44 individuals intended to be institutionalized.

45 3. A public or private place not designed for, or ordinarily used
46 as, a regular sleeping accommodation for human beings.

47 D. The school enrollment of a pupil who is a resident of this state
48 or who is admitted to a school district under section 15-823, subsection
49 B, C, ~~[E,]~~ [D,] ~~F~~, G or ~~[H]~~ [I] is deemed, for the purpose of

1 determining student count and for apportionment of state aid, to be
2 enrollment in the school district of actual attendance, except as provided
3 in section 15-825, subsection A, paragraph 1 and subsection A, paragraph 3
4 of this section and except for pupils for whom the superintendent of
5 public instruction is charged tuition pursuant to section 15-825,
6 ~~[subsections B, C and]~~ ~~☐~~ ~~[☐]~~ [SUBSECTION B] and section 15-976 or for
7 whom another school district is charged tuition as provided in subsections
8 E and ~~[☐]~~ [F] of this section.

9 E. If tuition is required to be charged for pupils attending school
10 in a school district other than that of their residence, the tuition shall
11 be determined and paid in the following manner:

12 1. The number of high school pupils for which tuition may be
13 charged to a transporting school district is equal to the average daily
14 membership in the district of attendance from the transporting school
15 district for the prior fiscal year. This number may be adjusted if the
16 transporting school district increases its revenue control limit and
17 district support level.

18 2. The tuition for pupils attending school in a school district
19 other than that of their residence, except pupils provided for by section
20 15-825, ~~[subsections B, C and]~~ ~~☐~~ ~~[☐]~~ [SUBSECTION B] and any pupils
21 included in the definition of child with a disability in section 15-761,
22 shall not exceed the cost per student count of the school district
23 attended, as determined for the current school year. Tuition for pupils
24 included in the definition of child with a disability in section 15-761
25 shall not exceed the actual cost of the school attended for each pupil as
26 determined for the current year. The school district of attendance shall
27 not include in the cost per student count a charge for transportation if
28 no transportation is provided, and the charge for transportation shall not
29 exceed the actual costs of providing transportation for the pupils served,
30 as prescribed in the uniform system of financial records. The school
31 district of attendance shall provide the school district of residence with
32 the final tuition charge for the current year and with an estimate of the
33 budget year's tuition charge by May 1 of the current year. The school
34 district of residence shall pay at least one-fourth of the total amount of
35 the estimated tuition by September 30, December 31 and March 31, and it
36 shall pay the remaining amount it owes after adjustments are made by
37 June 30.

38 3. Notwithstanding paragraph 2 of this subsection and subsection
39 ~~[☐]~~ [F] of this section, if two school districts enter into a voluntary
40 agreement for the payment of tuition, the agreement shall specify the
41 method for computing the tuition amount and the timing of the
42 payments. The agreement shall not be longer than five consecutive
43 years. If two school districts enter into an agreement and choose to
44 renew the agreement, each renewal shall not be longer than five
45 consecutive years. The agreement shall specify that a parent or legal
46 guardian of a pupil affected by a tuition agreement entered pursuant to
47 this section or section 15-816.01 may choose not to send the pupil or
48 pupils to a school district or school that is a party to the agreement.

1 4. Tuition of pupils as provided in section 15-825, subsection
2 ~~Ⓓ~~ ~~[Ⓓ]~~ ~~[B]~~ shall not exceed the excess costs for group B children with
3 disabilities minus the amount generated by the equalization base as
4 determined in section 15-971, subsection A for these pupils. A school
5 district may submit to the superintendent of public instruction a record
6 of actual excess costs to educate a group B child with a disability if the
7 costs are higher than the calculated excess costs or if a pupil has been
8 placed in a private school for special education services. The
9 superintendent shall determine if the additional costs will be paid, and
10 if the costs are paid, whether the additional costs will be paid by the
11 state or the resident district.

12 5. The amount received representing contributions to capital outlay
13 as provided in subsection ~~[Ⓓ]~~ ~~[F]~~, paragraph 1, subdivision (b) of this
14 section shall be applied to the capital outlay fund or the debt service
15 fund of the school district.

16 6. The amount received representing contributions to debt service
17 as provided in subsection ~~[Ⓓ]~~ ~~[F]~~, paragraph 1, subdivision (c) of this
18 section shall be applied to the debt service fund of the school district
19 if there is one. Otherwise the amount shall be credited to the capital
20 outlay fund of the school district.

21 ~~[F. A school district may submit to the superintendent of public~~
22 ~~instruction a record of actual costs paid by the school district to~~
23 ~~educate a pupil who qualifies for a certificate of educational convenience~~
24 ~~under section 15-825, subsection B OR C. If the actual costs for that~~
25 ~~pupil exceed the costs per student count computed pursuant to subsection Ⓓ~~
26 ~~of this section, the superintendent of public instruction shall reimburse~~
27 ~~the school district for these additional costs subject to legislative~~
28 ~~appropriation.]~~

29 ~~[Ⓓ.]~~ ~~[F.]~~ For the purposes of this section:

30 1. "Costs per student count" means the sum of the following for the
31 common or high school portion of the school district attended, whichever
32 is applicable to the pupil involved, as prescribed in the uniform system
33 of financial records:

34 (a) The actual school district expenditures for the regular
35 education program subsection of the maintenance and operation section of
36 the budget divided by the school district's student count for the common
37 or high school portion of the school district, whichever is applicable.

38 (b) The actual school district expenditures for the capital outlay
39 section of the budget as provided in sections 15-903 and 15-905 excluding
40 expenditures for transportation equipment and buildings if no
41 transportation is provided and expenditures for the acquisition of
42 building sites, divided by the school district's student count for the
43 common or high school portion of the school district, whichever is
44 applicable.

45 (c) The actual school district expenditures for debt service
46 divided by the school district's student count for the common or high
47 school portion of the school district, whichever is applicable.

1 2. "Legal custody" means:

2 (a) Custody exercised by the natural or adoptive parents with whom
3 a pupil resides.

4 (b) Custody granted by order of a court of competent jurisdiction
5 to a person or persons with whom a pupil resides unless the primary
6 purpose for which custody was requested was to circumvent the payment of
7 tuition as provided in this section.

8 Sec. 7. Section 15-825, Arizona Revised Statutes, is amended to
9 read:

10 15-825. Certificates of educational convenience; issuance;
11 effect on enrollment records; reporting
12 requirements; posting requirements; definitions

13 A. A pupil who is precluded by distance, lack of adequate
14 transportation facilities or a parent's or guardian's employment from
15 attending a school in the school district or county of the pupil's
16 residence or who resides in unorganized territory may apply to the pupil's
17 school district of residence or, for a pupil who resides in unorganized
18 territory, the school district of attendance for a certificate of
19 educational convenience. If a pupil who resides in unorganized territory
20 does not have a school district of attendance and seeks to ~~apply for a~~
21 ~~certificate of educational convenience~~ ENROLL IN A PUBLIC SCHOOL IN THIS
22 STATE, the pupil's parent ~~{{shall}}~~ {{MAY}} {{enroll the pupil in a school
23 pursuant to article 1.1 of this chapter}} ~~and apply to the school district~~
24 ~~that operates that school for a certificate of educational convenience~~
25 {{OR}} REQUEST ENROLLMENT OF THE PUPIL IN THE ADJOINING SCHOOL DISTRICT
26 THAT IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE~~{{. IF A PUPIL'S~~
27 PARENT REQUESTS ENROLLMENT OF THE PUPIL IN THE ADJOINING SCHOOL DISTRICT
28 THAT IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE}} BY SUBMITTING
29 ONLINE ENROLLMENT PAPERWORK TO THE SCHOOL DISTRICT, BY ATTEMPTING TO
30 ENROLL THE PUPIL IN PERSON AT A SCHOOL DISTRICT OFFICE OR AT A SCHOOL THAT
31 IS OPERATED BY THE SCHOOL DISTRICT, OR BY REQUESTING ENROLLMENT ASSISTANCE
32 IN A TELEPHONIC, ELECTRONIC OR IN-PERSON COMMUNICATION WITH THE SCHOOL
33 DISTRICT OR A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT~~{{. THE SCHOOL~~
34 DISTRICT SHALL ENROLL THE PUPIL}}. A school district that receives ~~an~~
35 ~~application~~ A REQUEST FOR ENROLLMENT pursuant to this subsection shall
36 submit ~~the~~ A completed CERTIFICATE OF EDUCATIONAL CONVENIENCE application
37 FOR THE PUPIL to the county school superintendent electronically, in
38 person or by regular mail NOT LATER THAN FIVE BUSINESS DAYS AFTER
39 RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION, EXCEPT THAT A SCHOOL
40 DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF THE SCHOOL
41 DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION. If it appears to
42 the county school superintendent that it is not feasible for the pupil to
43 attend a school in the school district or county of residence, the county
44 school superintendent shall issue a certificate of educational convenience
45 authorizing the pupil to attend a school in an adjoining school district
46 or county, whether within or without this state. A SCHOOL DISTRICT THAT
47 RECEIVES A REQUEST FOR ENROLLMENT OR AN APPLICATION FOR A CERTIFICATE OF
48 EDUCATIONAL CONVENIENCE PURSUANT TO THIS SUBSECTION MAY NOT DELAY CHILD
49 FIND ACTIVITIES, PARENTAL CONSENT FOR A SPECIAL EDUCATION EVALUATION OR

1 TIMELINES UNDER 34 CODE OF FEDERAL REGULATIONS SECTION 300.301 OR 300.323
2 BECAUSE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION IS
3 PROCESSING. If a certificate of educational convenience is issued as
4 provided in this subsection, the school enrollment of a pupil is as
5 follows:

6 1. The school enrollment of a pupil who is precluded from attending
7 a school in this state and who must attend school in another state, when
8 certified to the county school superintendent by the official in charge of
9 the school attended, is deemed for the purpose of determining student
10 count to be enrollment in the school of the county or school district of
11 the student's residence.

12 2. The school enrollment of a pupil from unorganized territory or
13 from another school district is deemed for the purpose of determining
14 student count to be enrollment in the school district of actual
15 attendance.

16 ~~[B. The county school superintendent of any county in which a pupil~~
17 ~~is placed as described in this subsection shall issue a certificate of~~
18 ~~educational convenience for the pupil to attend school in the school~~
19 ~~district or adjoining school district to that in which the pupil is placed~~
20 ~~by an A STATE PLACING agency of this state or a state or federal court of~~
21 ~~competent jurisdiction IF THE PUPIL IS PLACED in one of the following:~~

22 ~~1. A state rehabilitation or corrective institution.~~

23 ~~2. A foster home or child care agency or institution that is~~
24 ~~licensed and supervised by the department of child safety or the~~
25 ~~department of health services.~~

26 ~~3. A residential facility that is operated or supported by the~~
27 ~~department of economic security or the department of health services.~~

28 ~~4. Under the supervision of the department of juvenile corrections,~~
29 ~~a residence pursuant to the interstate compact on juveniles.~~
30 ~~Notwithstanding section 41-1959, the STATE placing agency, department or~~
31 ~~institution shall provide the school district of attendance with the~~
32 ~~necessary information to enable the district to obtain a certificate of~~
33 ~~educational convenience pursuant to this subsection.~~

34 ~~C. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION SEEKS TO~~
35 ~~ENROLL IN THE SCHOOL DISTRICT OR ADJOINING SCHOOL DISTRICT TO THAT IN~~
36 ~~WHICH THE PUPIL IS PLACED, THE PUPIL'S PARENT SHALL REQUEST ENROLLMENT OF~~
37 ~~THE PUPIL BY SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE SCHOOL~~
38 ~~DISTRICT, BY ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL DISTRICT~~
39 ~~OFFICE OR AT A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR BY~~
40 ~~REQUESTING ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR IN-PERSON~~
41 ~~COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS OPERATED BY THE~~
42 ~~SCHOOL DISTRICT. A SCHOOL DISTRICT THAT RECEIVES A REQUEST FOR ENROLLMENT~~
43 ~~PURSUANT TO THIS SUBSECTION:~~

44 ~~1. SHALL SUBMIT A COMPLETED CERTIFICATE OF EDUCATIONAL CONVENIENCE~~
45 ~~APPLICATION FOR THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT~~
46 ~~ELECTRONICALLY, IN PERSON OR BY REGULAR MAIL NOT LATER THAN FIVE BUSINESS~~
47 ~~DAYS AFTER RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION, EXCEPT~~
48 ~~THAT A SCHOOL DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF~~
49 ~~THE SCHOOL DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION.~~

1 ~~2. IS RESPONSIBLE FOR ALL CHILD FIND ACTIVITIES FOR THE PUPIL.~~

2 ~~3. IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION~~
3 ~~TO THE PUPIL IF THE PUPIL IS A CHILD WITH A DISABILITY AS DEFINED IN~~
4 ~~SECTION 15-761.~~

5 ~~4. MAY NOT DELAY CHILD FIND ACTIVITIES, PARENTAL CONSENT FOR A~~
6 ~~SPECIAL EDUCATION EVALUATION OR TIMELINES UNDER 34 CODE OF FEDERAL~~
7 ~~REGULATIONS SECTION 300.301 OR 300.323 BECAUSE A CERTIFICATE OF~~
8 ~~EDUCATIONAL CONVENIENCE APPLICATION IS PROCESSING.~~

9 ~~D. BEFORE FISCAL YEAR 2027-2028, EACH STATE PLACING AGENCY SHALL~~
10 ~~DEVELOP A FORM TO ATTEST THAT A PUPIL IS PLACED IN ONE OF THE PLACEMENTS~~
11 ~~DESCRIBED IN SUBSECTION B OF THIS SECTION. ON REQUEST, A STATE PLACING~~
12 ~~AGENCY SHALL COMPLETE THE FORM FOR THE PUPIL AND PROVIDE THE COMPLETED~~
13 ~~FORM TO THE REQUESTING PARTY. THE REQUESTING PARTY MAY SUBMIT THE~~
14 ~~COMPLETED FORM WITH A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION~~
15 ~~TO THE COUNTY SCHOOL SUPERINTENDENT AS EVIDENCE OF THE PUPIL'S ELIGIBILITY~~
16 ~~FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE PURSUANT TO SUBSECTION B OR C~~
17 ~~OF THIS SECTION.~~

18 ~~E. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION IS~~
19 ~~PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE PUPIL~~
20 ~~RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,~~
21 ~~INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR~~
22 ~~ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION~~
23 ~~ACT, AND THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING~~
24 ~~PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130 THROUGH~~
25 ~~300.144. THE SCHOOL DISTRICT IN WHICH THE PUPIL IS PLACED IS RESPONSIBLE~~
26 ~~FOR IDENTIFYING, LOCATING AND EVALUATING THE PUPIL AND FOR PROVIDING~~
27 ~~EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING TO THE PUPIL.~~

28 ~~C. F. A pupil attending school under a certificate of educational~~
29 ~~convenience issued pursuant to subsection B OR C of this section is deemed~~
30 ~~for the purpose of determining student count to be enrolled in the school~~
31 ~~district of attendance. The county school superintendent of any county~~
32 ~~shall not issue a certificate of educational convenience as provided in~~
33 ~~subsection B OR C of this section if the pupil is placed in the same~~
34 ~~district of the pupil's parents' or legal guardians' residence or if the~~
35 ~~pupil is placed without a court order and the pupil's parents or legal~~
36 ~~guardians are not residents of this state.]~~

37 ~~D. [G.] [B.]~~ If a certificate of educational convenience is
38 issued ~~[as provided in subsection B OR C of this section, or]~~ for a pupil
39 whose parent or guardian is employed and domiciled by a state institution
40 as prescribed by section 15-976, tuition may be charged as follows:

41 1. For group B children with disabilities:

42 (a) Who are from unorganized territory~~[;]~~ ~~[OR]~~ whose parent or
43 guardian is employed by a state institution as prescribed by section
44 15-976 ~~[or who have been issued a certificate of educational convenience~~
45 ~~pursuant to subsection B OR C of this section]~~, the superintendent of
46 public instruction shall reimburse the district of attendance for the
47 excess costs as provided in section 15-824, subsection E, paragraph 4.

1 (b) Who are from another school district, the school district of
2 residence shall reimburse the district of attendance for the excess costs
3 as provided in section 15-824, subsection E, paragraph 4.

4 2. For pupils who are precluded from attending a school in this
5 state and who must attend a school in another state:

6 (a) If the pupil resides in a school district in this state, the
7 district of residence shall pay the amount charged by the district of
8 attendance.

9 (b) If the pupil resides in unorganized territory, the
10 superintendent of public instruction shall pay the amount charged by the
11 district of attendance.

12 ~~E.~~ ~~[H.]~~ ~~[C.]~~ The county school superintendent who issues a
13 certificate of educational convenience shall notify the superintendent of
14 public instruction of the issuance of the certificate. The superintendent
15 of public instruction shall draw a warrant in favor of the school district
16 of actual attendance for the amount charged, whether for common or high
17 school attendance, as provided in section 15-824.

18 ~~F.~~ ~~[I.]~~ ~~[D.]~~ The total amount of state monies that may be spent
19 in any fiscal year by the superintendent of public instruction for
20 certificates of educational convenience shall not exceed the amount
21 appropriated or authorized by section 35-173 for that purpose. This
22 section does not impose a duty on an officer, agent or employee of this
23 state to discharge a responsibility or create any right in a person or
24 group if the discharge or right would require an expenditure of state
25 monies in excess of the expenditure authorized by legislative
26 appropriation for that specific purpose.

27 ~~[J.]~~ ~~[E.]~~ EACH COUNTY SCHOOL SUPERINTENDENT SHALL:

28 1. NOT LATER THAN FIVE BUSINESS DAYS AFTER RECEIVING A CERTIFICATE
29 OF EDUCATIONAL CONVENIENCE APPLICATION PURSUANT TO THIS SECTION, EITHER:

30 (a) ISSUE A CERTIFICATE OF EDUCATIONAL CONVENIENCE AUTHORIZING THE
31 PUPIL TO ATTEND THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE APPLICATION
32 AND NOTIFY THE SCHOOL DISTRICT AND THE PUPIL'S PARENT THAT THE CERTIFICATE
33 HAS BEEN ISSUED.

34 (b) NOTIFY IN WRITING THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE
35 APPLICATION AND THE PUPIL'S PARENT THAT THE COUNTY SCHOOL SUPERINTENDENT
36 IS NOT ISSUING A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR THE PUPIL.
37 THE NOTIFICATION REQUIRED BY THIS SUBDIVISION MUST EXPLAIN THE REASON THE
38 COUNTY SCHOOL SUPERINTENDENT IS DECLINING TO ISSUE A CERTIFICATE OF
39 EDUCATIONAL CONVENIENCE AND INSTRUCTIONS FOR CURING DEFICIENCIES IN THE
40 APPLICATION.

41 ~~G.~~ 2. On or before January 1 of each year, ~~each county school~~
42 ~~superintendent shall~~ report to the department of education the total
43 number of certificates of educational convenience that the county school
44 superintendent issued pursuant to subsection A of this section during the
45 previous calendar year ~~[and the total number of certificates of~~
46 ~~educational convenience that the county school superintendent issued~~
47 ~~pursuant to subsection B OR C of this section during the previous calendar~~
48 ~~year]~~.

1 3. BEFORE FISCAL YEAR 2027-2028, DEVELOP AND MAKE PUBLICLY
2 AVAILABLE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FORM AND
3 INSTRUCTIONS FOR SUBMITTING THE APPLICATION FORM. A COUNTY SCHOOL
4 SUPERINTENDENT MAY DEVELOP AN ONLINE APPLICATION PORTAL FOR THE PURPOSES
5 OF THIS PARAGRAPH IF THE PORTAL ALLOWS ANY PERSON WHO MAY SUBMIT AN
6 APPLICATION PURSUANT TO THIS SECTION, INCLUDING A SCHOOL DISTRICT, A
7 PUPIL, A PUPIL'S PARENT[, ~~A STATE PLACING AGENCY~~] OR A PUPIL'S LEGAL
8 REPRESENTATIVE, TO SUBMIT AN APPLICATION THROUGH THE PORTAL.

9 ~~{{4. ON REQUEST FROM A PUPIL OR THE PARENT OF A PUPIL WHO RESIDES~~
10 ~~IN AN UNORGANIZED TERRITORY, IDENTIFY THE ADJOINING SCHOOL DISTRICT THAT~~
11 ~~IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE.}}~~

12 ~~H.~~ ~~[K.]~~ ~~[E.]~~ The department of education shall maintain the
13 reports received under subsection ~~6~~ ~~[J]~~ ~~[E]~~, PARAGRAPH 2 of this section
14 AND SHALL POST THE REPORTS ON THE DEPARTMENT'S WEBSITE.

15 ~~[I.]~~ ~~[G.]~~ EACH SCHOOL DISTRICT IN THIS STATE THAT ADJOINS AN
16 UNORGANIZED TERRITORY SHALL:

17 1. INCLUDE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION
18 FORM AND INSTRUCTIONS REGARDING SUPPORTING DOCUMENTATION WITH PROOF OF
19 RESIDENCY DOCUMENTATION REQUIREMENTS IN ENROLLMENT PACKETS.

20 2. POST ON THE SCHOOL DISTRICT'S WEBSITE BOTH OF THE FOLLOWING:

21 (a) THE FORM AND INSTRUCTIONS DESCRIBED IN PARAGRAPH 1 OF THIS
22 SUBSECTION.

23 (b) INSTRUCTIONS FOR PARENTS WHO ELECT TO SUBMIT THE APPLICATIONS
24 TO THE COUNTY SCHOOL SUPERINTENDENT.

25 ~~[M.]~~ ~~[H.]~~ ENROLLMENT IS GUARANTEED FOR ANY PUPIL FOR WHOM A
26 CERTIFICATE OF EDUCATIONAL CONVENIENCE IS ISSUED PURSUANT TO THIS SECTION
27 AND IS NOT SUBJECT TO PROGRAMMATIC CAPACITY LIMITATIONS.

28 ~~[N. THE DEPARTMENT OF EDUCATION SHALL:~~

29 ~~1. DEVELOP AND ADOPT A CLEAR, WRITTEN POLICY THAT IDENTIFIES A~~
30 ~~SUPPLEMENTAL PROCESS FOR PROMPT RESOLUTION OF DISPUTES BETWEEN COUNTY~~
31 ~~SCHOOL SUPERINTENDENTS, PARENTS OF PUPILS AND LOCAL EDUCATION AGENCIES,~~
32 ~~RELATING TO ANY OF THE FOLLOWING:~~

33 ~~(a) APPLICATIONS FOR ENROLLMENT OF PUPILS PURSUANT TO THIS SECTION.~~

34 ~~(b) THE PROVISION OF SERVICES REQUIRED PURSUANT TO THIS CHAPTER AND~~
35 ~~CHAPTER 7, ARTICLE 4 OF THIS TITLE.~~

36 ~~(c) FUNDING FOR A PUPIL'S EDUCATION PURSUANT TO THIS SECTION.~~

37 ~~(d) DENIALS OR DELAYS OF ANY OF ITEMS LISTED IN SUBDIVISION (a),~~
38 ~~(b) OR (c) OF THIS PARAGRAPH.~~

39 ~~2. ENSURE ALL OF THE FOLLOWING:~~

40 ~~(a) THAT ANY DISPUTE ARISING UNDER THIS SECTION IS DECIDED NOT~~
41 ~~LATER THAN TEN BUSINESS DAYS AFTER THE DISPUTE RESOLUTION PROCESS IS~~
42 ~~INITIATED.~~

43 ~~(b) THAT A PUPIL IS ENROLLED IN A SCHOOL DISTRICT AND RECEIVES~~
44 ~~SERVICES PURSUANT TO THIS CHAPTER AND CHAPTER 7, ARTICLE 4 OF THIS TITLE~~
45 ~~WHILE THE DISPUTE IS PENDING.~~

46 ~~(c) THAT THE DISPUTE RESOLUTION PROCESS DOES NOT LIMIT OR DELAY A~~
47 ~~PUPIL'S OR PARENT'S ACCESS TO THE STATE COMPLAINT PROCESS OR DUE PROCESS~~
48 ~~PROCEDURES UNDER THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20~~
49 ~~UNITED STATES CODE SECTIONS 1401 THROUGH 1485).~~

1 ~~3. INVESTIGATE ANY COMPLAINTS THE DEPARTMENT RECEIVES THAT ALLEGE~~
2 ~~THAT A POLITICAL SUBDIVISION OR AGENCY IS VIOLATING THIS SECTION OR~~
3 ~~SECTION 15-768.~~

4 ~~4. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS PURSUANT TO~~
5 ~~PARAGRAPH 3 OF THIS SUBSECTION AND ANY CORRECTIVE ACTIONS TAKEN IN THE~~
6 ~~IMMEDIATELY PRECEDING YEAR AND POST THE REPORT ON THE DEPARTMENT'S~~
7 ~~WEBSITE.]~~

8 [0.] [I.] [SUBSECTIONS] [SUBSECTION] A [AND C] OF THIS SECTION
9 [DO] [DOES] NOT PRECLUDE A PUPIL, A PUPIL'S PARENT, [A STATE PLACING
10 AGENCY,] A PUPIL'S LEGAL REPRESENTATIVE OR ANY OTHER INTERESTED PARTY FROM
11 SUBMITTING AN APPLICATION FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR
12 THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT.

13 [P.] [J.] FOR THE PURPOSES OF THIS SECTION:

14 1. "CHILD FIND" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-768.

15 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
16 PRESCRIBED IN SECTION 15-768.

17 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

18 ~~[4. "STATE PLACING AGENCY" HAS THE SAME MEANING PRESCRIBED IN~~
19 ~~SECTION 15-1181.]~~

20 [5.] [4.] "UNORGANIZED TERRITORY" MEANS A GEOGRAPHIC AREA THAT IS
21 NOT LOCATED WITHIN THE BOUNDARIES OF ANY SCHOOL DISTRICT.

22 Sec. 8. Section 15-944, Arizona Revised Statutes, is amended to
23 read:

24 15-944. Base revenue control limit

25 A. The base revenue control limit for each school district for
26 fiscal year 1980-1981 is computed as follows:

27 1. Add the amounts in the fiscal year 1979-1980 budget effective
28 May 15, 1980 for general operating and special education.

29 2. Subtract the following budgeted revenues from the sum obtained
30 in paragraph 1 of this subsection:

31 (a) Tuition paid for attendance of nonresident pupils.

32 (b) State assistance as provided in section 15-976.

33 (c) Special education revenues as provided in section 15-825,
34 subsection ~~D~~ [C] [B] and section 15-1204.

35 (d) Proceeds from the sale or lease of school property as provided
36 in section 15-1102.

37 3. Add the increase in the base support level from fiscal year
38 1979-1980 to fiscal year 1980-1981 to the difference obtained in paragraph
39 2 of this subsection.

40 B. The equalization factor for each school district is computed as
41 follows:

42 1. Divide the sum obtained in subsection A, paragraph 3 of this
43 section by the base support level for fiscal year 1980-1981.

44 2. Subtract 1.0 from the quotient obtained in paragraph 1 of this
45 subsection to obtain the equalization factor.

46 C. The revenue variation factor for each fiscal year is as follows:

47 1. For fiscal year 1981-1982, 0.80.

48 2. For fiscal year 1982-1983, 0.60.

49 3. For fiscal year 1983-1984, 0.40.

1 4. For fiscal year 1984-1985, 0.20.

2 D. The base revenue control limit for each school district during
3 the five years in which the equalization plan is in operation is computed
4 as follows:

5 1. Multiply the equalization factor by the revenue variation factor
6 for the applicable year. Beginning with fiscal year 1983-1984 if the
7 resulting product is less than negative 0.08, use negative 0.08 for
8 computation purposes as provided in paragraph 2 of this subsection.

9 2. Multiply the product obtained in paragraph 1 of this subsection
10 by the base support level for the applicable year.

11 3. Add the base support level for the applicable year to the
12 product obtained in paragraph 2 of this subsection.

13 E. For fiscal year 1985-1986 and each fiscal year thereafter, the
14 base revenue control limit equals the base support level for the same
15 fiscal year.

16 Sec. 9. Section 15-947, Arizona Revised Statutes, is amended to
17 read:

18 15-947. Revenue control limit; district support level; general
19 budget limit; unrestricted total capital budget limit;
20 district additional assistance limit

21 A. The revenue control limit for a school district is equal to the
22 sum of the base revenue control limit determined in section 15-944 and the
23 transportation revenue control limit determined in section 15-946.

24 B. The district support level for a school district is equal to the
25 sum of the base support level determined in section 15-943 and the
26 transportation support level determined in section 15-945.

27 C. The general budget limit for each school district, for each
28 fiscal year, is the sum of the following:

29 1. The maintenance and operations portion of the revenue control
30 limit for the budget year.

31 2. The maintenance and operation portion of the following amounts:

32 (a) Amounts that are fully funded by revenues other than a levy of
33 taxes on the taxable property within the school district, as listed below:

34 (i) Amounts budgeted as the budget balance carryforward as provided
35 in section 15-943.01.

36 (ii) Tuition revenues for attendance of nonresident pupils.

37 (iii) State assistance as provided in section 15-976.

38 (iv) Special education revenues as provided in section 15-825,
39 subsection ~~B~~ [C] [B] and section 15-1204.

40 (v) Title VIII of the elementary and secondary education act of
41 1965 assistance determined for children with disabilities, children with
42 specific learning disabilities, children residing on Indian lands and
43 children residing within the boundaries of an accommodation school that is
44 located on a military reservation and that is classified as a heavily
45 impacted local educational agency pursuant to 20 United States Code
46 section 7703 as provided in section 15-905, subsections K and O.

47 (vi) Title VIII of the elementary and secondary education act of
48 1965 administrative costs as provided in section 15-905, subsection P.

1 (vii) State assistance for excess tuition as provided in section
2 15-825.01.

3 (viii) Transportation revenues for attendance of nonresident
4 pupils.

5 (b) Amounts approved pursuant to an override election as provided
6 in section 15-481 for the applicable fiscal year.

7 (c) Amounts authorized by the county school superintendent pursuant
8 to section 15-974, subsection B.

9 (d) Expenditures for complying with a court order of desegregation
10 as provided in section 15-910.

11 (e) Interest on registered warrants or tax anticipation notes as
12 provided in section 15-910.

13 (f) Amounts budgeted for a jointly owned and operated career and
14 technical education and vocational education center as provided in section
15 15-910.01.

16 3. The maintenance and operations portion of district additional
17 assistance for the budget year.

18 4. Any other budget item that is budgeted in the maintenance and
19 operation section of the budget and that is specifically exempt from the
20 revenue control limit or district additional assistance.

21 D. The unrestricted capital budget limit, for each school district
22 for each fiscal year, is the sum of the following:

23 1. The federal impact adjustment as determined in section 15-964
24 for the budget year.

25 2. Any other budget item that is budgeted in the capital outlay
26 section of the budget and that is specifically exempt from district
27 additional assistance.

28 3. The unrestricted capital portion of the amounts contained in
29 subsection C of this section.

30 4. The unexpended budget balance in the unrestricted capital outlay
31 fund from the previous fiscal year.

32 5. The net interest earned in the unrestricted capital outlay fund
33 from the previous fiscal year.

34 Sec. 10. Section 15-976, Arizona Revised Statutes, is amended to
35 read:

36 15-976. Assistance for school districts for children whose parents
37 are employed by certain state institutions; expenditure
38 limitation

39 A. The superintendent of public instruction shall assist school
40 districts in educating children whose parents or legal guardians are
41 employed by and domiciled at the following state institutions and
42 stations: the state hospital, the Arizona state schools for the deaf and
43 the blind, intellectual disability centers, port of entry inspection
44 stations and institutions and facilities maintained by the state
45 department of corrections. The school enrollment is deemed for the
46 purpose of determining student count to be enrollment in the school
47 district of actual attendance. The assistance shall be by payment of
48 tuition as follows:

1 1. For group B children with disabilities, as provided in section
2 15-825, subsection ~~B~~ ~~[A]~~ ~~[B]~~.

3 2. For children other than group B children with disabilities, the
4 costs per student count as prescribed in section 15-824, subsection ~~[A]~~
5 ~~[E]~~ minus the amount generated by the equalization base as determined in
6 section 15-971, subsection A for those pupils, except that the tuition for
7 any pupil shall not exceed an amount equal to ~~seven thousand dollars~~
8 ~~\$7,000~~ minus the amount generated by the equalization base as determined
9 in section 15-971, subsection A.

10 B. Claims for such payments shall be made by the school districts
11 through the county school superintendent to the superintendent of public
12 instruction.

13 C. The total amount of state monies that may be spent in any fiscal
14 year by the superintendent of public instruction pursuant to subsection A
15 of this section shall not exceed the amount appropriated or authorized by
16 section 35-173 for that purpose. This section ~~shall~~ DOES not ~~be construed~~
17 ~~to~~ impose a duty on an officer, agent or employee of this state to
18 discharge a responsibility or ~~to~~ create any right in a person or group if
19 the discharge or right would require an expenditure of state monies in
20 excess of the expenditure authorized by legislative appropriation for that
21 specific purpose.

22 <<Sec. 11. Section 15-1185, Arizona Revised Statutes, is amended to
23 read:

24 15-1185. School district responsibility; integration into a school

25 A. For a child who is placed in a private residential facility
26 pursuant to this article, the home school district is responsible for
27 reviewing the child's educational progress and planning for integrating
28 the child into a public school when it is educationally appropriate.

29 B. The private residential facility and the state placing agency
30 shall work with the home school district for purposes of integrating the
31 child into a public school when it is educationally appropriate.

32 C. If a child who has been placed in a private residential facility
33 for care, safety or treatment reasons attends a public school in other
34 than the home school district on either a part-time or full-time basis,
35 the residential education voucher terminates ~~[and the following apply:~~

36 ~~1. The school district of attendance must apply for a certificate~~
37 ~~of educational convenience as provided in section 15-825, subsection B].~~

38 ~~[2.]~~ If the child attends school in the residential facility on a
39 part-time basis, the school district of attendance must ~~[apply for a~~
40 ~~certificate of educational convenience and]~~ either provide direct services
41 in the residential facility or contract with the residential facility for
42 that portion of educational services that the private residential facility
43 is to provide.

1 D. If a child who requires residential special education placement
2 is placed outside of the home school district and is able to attend a
3 nonresidential school on a part-time basis, the residential special
4 education placement voucher terminates. The school district of attendance
5 shall ~~[apply for a certificate of educational convenience and]~~ pay a
6 prorated tuition amount to the private residential facility.>>

7 Enroll and engross to conform
8 Amend title to conform

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